



Resolution No. 1333-2017-SETENA

THE MINISTRY OF ENVIRONMENT AND ENERGY, THE NATIONAL TECHNICAL SECRETARIAT
ENVIRONMENTAL, AT 13:05 HOURS ON JULY 07, 2017

CDP RÍO GENERAL PROJECT
ADMINISTRATIVE FILE No. D1-11642-2013-SETENA

Know the Plenary Commission of this Secretariat of the Environmental Impact Study (EsIA), of the CDP Río General project, presented by the company Vientos del Noroeste ABM, S.A., legal entity ID: 3-101-393860, represented by Mr. José Montero Beita, identity card: 3-0241-0708, administrative file number D1-11642-2013-SETENA.

RESULTING

FIRST: On October 29, 2013, the Environmental Assessment document D1 of the CDP Río General project, presented by Vientos del Noroeste ABM, S.A., legal entity ID: 3-101-393860, represented by Mr. José Montero Beita, identity card: 3-0241-0708, administrative file number D1-11642-2013-SETENA, is received at this Secretariat.

SECOND: On November 27, 2013, by Resolution No. 1991-2014-SETENA, the developer is asked to present an Environmental Impact Study.

THIRD: On September 17, 2015, the developer requests an extension to present the EsIA

FOUR: On October 13, 2015, by Resolution No. 2264-2015-SETENA, a six-month deadline is granted.

FIFTH: On April 19, 2016, the requested Environmental Impact Study is filed with this Secretariat.

SIXTH: On October 25, 2016, a field inspection of the site of interest is carried out by the official of this Secretariat, Roberto Esquivel B., as well as representatives of the developer, Mr. José Montero Beita and Edwin Estrada H.

SEVENTH: On November 21, 2016, by Resolution No. 2132-2016, the developer is asked to present an attachment to the EsIA.

EIGHTH: On May 19, 2017 the attached document requested in the previous paragraph is filed with this Secretariat.

CONSIDERING

FIRST: That Mr. José Montero Beita, identity card: 3- 0241-0708, is authorized to request the environmental assessment on behalf of the company Vientos del

Noroeste ABM, S.A., legalID: 3-101-393860, of the project: CDP Río General, administrative file number D1-11642-2013-SETENA.

SECOND: That Article 19 of the Organic Environmental Law states "The resolutions of the National Technical Secretariat of the Environment must be reasoned and justified. They shall be binding for both private individuals and public entities and bodies."

THIRD: In accordance with the criterion of the Environmental Evaluation Department, field inspection, the documentation contained in the administrative file and the Environmental Impact Study, the following was determined:

On October 25, 2016, an inspection of the project area was conducted by the Environmental Evaluation Department (DEA) official Roberto Esquivel Benavides and Mr. José Montero Beita, Edwin Estrada H., corroborating the following environmental conditions:

1. Project Area Accesses (PA):

Access to the PA is located one kilometer north of the General Viejo church 2. Condition of the PA:

Alluvial terraces devoid of vegetation, along the two-kilometer requested section.

3. GPS Coordinates Record.

Channel: 0536311, 1037790. Quarry: 0536043, 1037805.

4. Presence of Surface Water Bodies:

Río General.

5. Other Aspects:

Quarry site in the inner part of the property, isolated site, out of neighbors' visibility.

Most of the river protection zone is covered only by scrub vegetation, due to the agricultural activity carried out by the community.

They have several private accesses to the riverbank, as a large part of the property borders the river.

Generated Observations and Attachments

I. The area of interest for the location of the storage yards and the quarry plant, and the adjacent sites are occupied by extensive scrub, page 14.

II. Infrastructure to develop: guardhouse, equipped office, storage yard and material crushing plant (quarry) page 18.

III. Water used to wash the materials and prevent rock dust generation during rock crushing, which will be discharged by using sedimentation lagoons so that solids in the water during processing can settle and release the water from solids before it is incorporated into the riverbed of the Río General, page 28

IV. The water quality of the rivers and creeks near the project is considered as good, but not potable, page 36.

- V. It is clear, during interviews, that there is very little resistance to the project already that there is familiarity with it, p. 52.
- VI. Both in the AP (CDP) and in the storage yard (pile site), there is no archaeological vestige, p. 53.
- VII. Based on the results of the transit times of organic contaminants in the unsaturated and saturated zone of the subsurface, pathogenic bacteria will remain for 70 days once they have moved away a distance of 5.87 m from the discharge source.
- VIII. Hydrological study, flow analysis and estimation of dynamic reserves.
- IX. According to the results of the macrobentos study, these indicate a fauna of macrobenthic aquatic invertebrates that are very little diverse and not very abundant.

FOURTH: That Article 6 of the Amendment to Article 45 of the General Regulations on EIA Procedures, of Executive Decree No. 31849-MINAE-S-MOPT-MAG-MEIC, indicates the Fundamental Environmental Commitment Clause as follows: "This Viability (environmental license) is granted understanding that the project developer, work or activity will fully and properly comply with all regulations and technical, legal, and environmental standards in force in the country and to be executed before other authorities of the Costa Rican State. Non-compliance with this clause by the developer will not only make them subject to sanctions for non-compliance with such regulation, but also, since it constitutes part of the fundamental basis on which the VLA is supported, will automatically annul the VLA with the technical, administrative, and legal consequences that this has for the activity, work or project and for its developer, particularly regarding the scopes of the application of Article 99 of the Organic Environmental Law."

FIFTH: That Article 17 of the Organic Environmental Law states that: "Human activities that alter or destroy elements of the environment or generate waste, toxic or hazardous materials, will require an environmental impact assessment by the National Technical Environmental Secretariat created in this law. Its prior approval, by this body, will be an indispensable requirement to initiate activities, works, or projects. Laws and regulations will indicate which activities, works, or projects will require the environmental impact assessment." In the present administrative procedure, the environmental assessment instrument (EsIA), Environmental Impact Study, and the Declaración Jurada de Compromisos Ambientales, in accordance with the Manual of Technical Instruments for the environmental impact assessment process (Manual of EIA, part II), which were duly analyzed by the Department of Environmental Assessment, concluded that they meet the terms of reference and the technical requirements issued by this Secretariat. By virtue of the foregoing, and in accordance with the control and monitoring powers established in Article 20 of the Organic Environmental Law, which states: "The National Technical Environmental Secretariat shall establish instruments and means to monitor compliance with the resolutions of the environmental impact assessment. In cases of violation of its content, it may order the suspension of works. The interested party, the author of the study and those who approve it shall be jointly and severally liable for damages caused.", what is appropriate in the present case is to approve the environmental impact assessment instrument, the Declaración Jurada de Compromisos Ambientales (DJCA), and the environmental impact matrices, presented in Document D1, and to grant environmental viability.

SIXTH: In accordance with Article 45°. - Resolution and granting of Viability (or Environmental License) of the Environmental Impact Assessment Regulation Executive Decree No. 31849-MINAE-MAG-MOPT, MEIC, S, states: "The environmental commitment guidelines or directives that frame the granting of viability (environmental license), and that will be based on the entire EIA process, as well as a series of conditions and instruments for environmental control and monitoring, which include the following elements: Development and implementation of the Environmental Control and Monitoring Instruments (ICOS), which include 3 basic aspects such as: Appointment of an Environmental Manager, an Environmental Logbook and the Environmental Guarantee in accordance with the provisions of the Organic Environmental Law", the amount of which will be set by this administrative act. These must be submitted to SETENA before starting the works.

**THEREFORE
THE PLENARY COMMISSION RESOLVES**

In the Ordinary Session No. 080-2017 of this Secretariat, held on July 7, 2017, in Article No. 03 it agrees:

FIRST: Approve the environmental assessment document D1, the Environmental Impact Study (EslA), the Sworn Statement of Environmental Commitments and the environmental impact matrices, presented together with Document D1, which were submitted for evaluation by the project designer.

SECOND: Order Vientos del Noroeste ABM, S.A., legal entity: 3-101-393860, represented by Mr. José Montero Beita, ID: 3-0241-0708, of the CDP Río General project, administrative file D1-11642-2013-SETENA, to deposit the environmental guarantee amounting to ₡180,000.00 (One hundred eighty thousand colones exact, corresponding to 1% of the total project investment plus \$4,000.00 per linear kilometer licensed or its equivalent in colones per Resolution No. 205-2006- SETENA). To render the Performance Guarantee there are three options:

1) Term Deposit Certificate (Any Public or Private Bank), issued in the name of the developer and endorsed in favor of MINAE-SETENA.

2) Performance Guarantee established by any financial entity recognized by the State, issued in the name of the developer and indicating that the beneficiary is MINAE-SETENA.

For options 1 and 2, it must be presented to the Custody and Securities Administration Department of the National Bank of Costa Rica, at the Central Offices, to be kept in custody No. CV-7297-SETENA-MINAE. The term of the performance guarantee must be at least one year.

3) Bank Deposit in the Accounts of the Ministry of Environment and Energy (MINAE)

These are the only accounts currently available to make your deposit:

Name	Checking account	Client account	Designation
Guarantees of Compliance MINAE Colones	100-01-202-000510-1 151	20210010005107 Colones	
Guarantees of Compliance MINAE Dollars	100-02-202-000362-7 151	20210020003629 dollars	

These bank accounts are registered at the National Bank of Costa Rica in the name of MINAE, legal entity 2-100-042014.

Note: The deposit or transfer must indicate in the concept: Administrative case number and the developer's name, as well as provide to this Secretariat the receipt of the respective deposit; which must be for a minimum period of one year, in accordance with Article 21 of the Organic Environmental Law.

Appoint an Environmental Manager, with current registration in SETENA's Consultants Register, by sending a note signed by the owner with the acceptance of the assigned professional and presenting a Minute Book to enable it as a Logbook, which must remain on the project facilities during the environmental reagency period, and the indicated documents must be presented to this Secretariat before starting construction work. If the indicated documents are not submitted within the established time, the applicable legislation will be enforced.

THIRD: Based on the environmental characteristics of the AP and its interaction with the activities the project will carry out, the Plenary Commission establishes the frequency of submission of regulatory reports, a consolidated report for the construction phase and every six months during the material extraction and processing phase, and a final closure report for that phase. The regulatory reports must be submitted within a maximum of 10 days after the end of the period they cover. At the start of activities, the reagency environmental period begins. For the preparation of these reports, in accordance with the format established by this Secretariat, it will be the responsibility of the environmental manager to carry out the necessary number of visits, depending on the characteristics of the project. Based on these reports and the monitoring program, SETENA may adjust the amount of the guarantee and issue mandatory compliance measures to keep the project, work, or activity within a controlled environmental impact margin. The responsible party and the owner must provide support to SETENA's inspections.

FOUR: Non-compliance with the requirements of this Secretariat, as well as any of the obligations undertaken in the Environmental Commitments Sworn Statement, the environmental impact matrices, together with Document D1, may be sanctioned in accordance with the provisions of Article 99 of the Organic Environmental Law, as well as other applicable legislation.

FIFTH: The interested party is informed that, in accordance with Articles 17, 18, and 19 of the Organic Environmental Law, the environmental assessment procedure for the project has been completed with the following characteristics:

Project Name: CDP Río General.
 Developer: Vientos del Noroeste ABM, S.A., legal entity: 3-101-393860.
 Location: Province: San José
 Canton: Pérez Zeledón
 District: General Viejo
 Cartographic Sheet: San Isidro, Scale: 1:50,000
 Coordinates:

FILE 76T-2013 CDP RIO GENERAL_Start	536,563.07	1,038,887.01
FILE 76T-2013 CDP RIO GENERAL_End	535,875.09	1,037,161.53
FILE 76T-2013 CDP RIO GENERAL_Existing internal road start	537,111.26	1,037,658.20
FILE 76T-2013 CDP RIO GENERAL_Existing internal road end	535,930.27	1,037,621.41
FILE 76T-2013 CDP RIO GENERAL_Breaker	536,330.97	1,037,785.53
FILE 76T-2013 CDP RIO GENERAL_Dumper ramp	536,305.57	1,037,794.19
FILE 76T-2013 CDP RIO GENERAL_Office	536,399.10	1,037,730.11
FILE 76T-2013 CDP RIO GENERAL_Storage	536,340.21	1,037,787.27

Cadastral Plan No.: SJ-0980661-1991 and SJ-0980860-1991
 Real Folios: 1-101880-000 and 1-386536-000.

PROJECT DESCRIPTION:

The project consists of extracting materials from the General River channel, in an 11-hectare area, which will be deposited on the neighboring farm, owned by the applicants, where a breaking plant will also be installed to process the materials for later sale to third parties. This process will be carried out in wet conditions with water from a concession that the applicants also hold. The equipment to be used in the extraction will be a D-8 tractor and an excavator equal to or similar to a Cat 345.

Therefore, the ENVIRONMENTAL VIABILITY is granted to the project, leaving the Environmental Management stage open and understanding that the fundamental Environmental Commitment Clause will be fulfilled.

SIXTH: The validity of this viability will be for a period of TWO YEARS for the start of the works. However, due to the concession award process before the Directorate of Geology and Mines and the Executive Power, this act conditions the start of the Environmental Viability validity from the submission of the certified photocopy of the concession grant by the Executive Power (to be submitted within a maximum of 10 days)

business days after it has been granted). The foregoing is based on Article 132, sub-para. 4, and Article 145, sub-para. 3 and 4, of the General Law on Public Administration. In turn, SETENA reserves the right to request an update of the studies and/or the Environmental Management Plan, in the event that the term of the Environmental Viability is exceeded, before the

submission of the certified photocopy of said concession.

SEVENTH: The developer, company Vientos del Noroeste ABM, S.A., is hereby warned that environmental viability only covers what is indicated in the project description and the design submitted (which is attached in Form D1), prior to—under construction or already built—that any modification must be reported to SETENA so that it can carry out the corresponding environmental assessment; otherwise, action will be taken in accordance with the regulations

in force.

EIGHTH: The developer is hereby warned that, in accordance with Article 11 of Executive Decree No. 31849-MINAE-S-MOPT-MAG-MEIC—Scope of the EIA processing before SETENA, compliance with the EIA procedure does not exempt the developer of an activity, work, or project from the processing to be completed before other Administration authorities, in accordance with current competencies and regulations, nor from fulfilling its obligations or responsibilities that arise from its management.

NINTH: Against this resolution, within the period of three days from the day following notification, the ordinary remedies for reconsideration may be filed before SETENA, and the appeal before the Minister of Environment and Energy, in accordance with Articles 342 and following of the General Law on Public Administration and 87 of the Organic Law on the Environment.

TENTH: All documentation submitted before SETENA must clearly indicate the case file number, the resolution number, and the full name of the project, as well as an email address to handle future notifications or to confirm the one stated in the administrative file.

The original documents signed digitally (Digital Signature) will be available at the web address <http://www.setena.go.cr/docs/>, where they must be verified by the interested party. A printed and signed original is filed as a part of the administrative file that is under SETENA's custody. As for the documents signed physically, they are included in the administrative file for any verification. In the event that the interested party requires a certified printed copy of any of the notified documents, they must request a certification in writing before SETENA.

Sincerely,

Lic. Marco V. Arroyo Flores
GENERAL SECRETARY
ON BEHALF OF THE PLENARY COMMISSION

In the office of the National Technical Secretariat for the Environment, document No. 1333-2017-SETENA was notified at 13:05 on July 7, 2017.

NOTIFY:

José Montero Beita, identity card: 3-0241-0708.

Email: ehestrada@ice.co.cr

Fax: 2231-0049

Appearances (Names and fax numbers):

Department of Geology and Mines.

Ileana Boschini López.

mбенавидес@minae.go.cr

Signature: _____ ID _____

At _____ hours and _____ minutes of the _____ day of _____ 2017.

Notifies _____

In accordance with Article 34 of Judicial Notifications Law No. 8687 (published in La Gaceta No. 20 of January 29, 2009), the document issued by email or fax has the validity and effectiveness of the original physical documents, and ways must be established to ensure authenticity, integrity, and security.